



CLIENT SERVICE AGREEMENT & TERMS OF SERVICE

This Agreement is between Pooja's Couture ("the Boutique", "we", "us"), a bridal and occasion-wear couture business operating from Glenwood, New South Wales, Australia, and the client named on the associated order form ("the Client", "you"). By paying a deposit or confirming an order, the Client accepts these Terms in full.

[DRAFT — for review with Pooja before use. Recommend independent legal review before this is issued to any client, particularly the limitation-of-liability and refund clauses, to confirm enforceability under the Australian Consumer Law (ACL).]

1. Governing Law and Consumer Guarantees

This Agreement is governed by the laws of New South Wales, Australia. Nothing in this Agreement excludes, restricts, or modifies any guarantee, right, or remedy conferred on the Client under the Australian Consumer Law (Schedule 2 of the Competition and Consumer Act 2010 (Cth)) ("ACL") or any other law that cannot lawfully be excluded.

- Services will be provided with due care and skill, fit for the disclosed purpose, and within a reasonable time, as required by the ACL consumer guarantees.
- Where a failure to meet a consumer guarantee is not a major failure, the Boutique's liability is limited, to the extent permitted by law, to resupplying the service or paying the cost of having the service supplied again.
- Where a failure amounts to a major failure under the ACL, the Client is entitled to a refund, replacement, or compensation for reasonably foreseeable loss, as applicable.
- Any clause in this Agreement that would otherwise exclude, restrict, or limit a non-excludable ACL guarantee is to be read down to the minimum extent necessary for validity, and no further.

For international supply arrangements, some fabrics, embroidery work, beadwork, and finished garment components are sourced, manufactured, or partially manufactured by third-party artisans and vendors based in India, with logistics and freight forwarding also originating from India. This does not change the governing law of this Agreement or the Client's ACL rights against the Boutique — the Boutique remains the sole contracting party and sole point of accountability to the Client. Clause 8 addresses delays arising from this supply chain.

2. Payment Terms

- A non-refundable-except-as-required-by-law deposit of 30% of the total quoted price is due within 7 days of the Boutique issuing the order invoice. Work will not commence, and materials will not be procured, until this deposit is received.
- A second progress payment (if applicable, as specified on the invoice) is due at the milestone stated on the order form — typically on commencement of embroidery or beadwork.

- The final balance is due in full prior to final fitting, alteration handover, or delivery/collection of the completed garment(s), whichever occurs first. Garments will not be released with an outstanding balance.
- All prices are quoted in Australian Dollars (AUD) and are exclusive of GST unless stated otherwise on the invoice.
- Accepted payment methods, and any surcharges that apply to them, will be stated on the invoice.
- Late payment of the second or final instalment may result in the Boutique pausing work on the order until payment is received, which may in turn affect the delivery timeline under Clause 4.

3. Cancellation and Refund Policy

- Deposits are non-refundable once paid, as they are used to secure fabric, commission karigar (artisan) labour, and reserve production capacity that cannot be redirected once committed. This clause does not affect any right the Client has under the ACL where the Boutique has failed to meet a consumer guarantee.
- If the Client cancels after the second progress payment has been made, the Boutique will refund any amount paid in excess of costs already incurred and non-recoverable labour committed at the date of cancellation, itemised on request.
- If the Client cancels within 14 days of the confirmed delivery or wedding date specified on the order form, no refund will be given for any amount paid, reflecting that the garment is complete or substantially complete and cannot be resold.
- Cancellations must be made in writing (email is acceptable) to be effective.
- If the Boutique is unable to complete the order for reasons within its control, the Client is entitled to a full refund of amounts paid for the incomplete work, in addition to any remedy available under the ACL.

4. Delivery Timeline

- Estimated delivery or completion dates provided at the time of order are best-faith estimates based on the scope of work agreed at that time, not guaranteed delivery dates, given the handmade and often hand-embroidered nature of the garments.
- The Boutique will notify the Client as early as reasonably possible of any anticipated delay and the revised estimated date.
- Where a delay is caused by a Client-side change (design change, measurement change, fabric change, or late payment), the revised timeline resulting from that change is not a breach of this Agreement.
- Where the ACL's "reasonable time" guarantee applies, this clause does not exclude that guarantee — it sets out the factors relevant to what is reasonable given the custom, artisanal nature of the work.

5. Alterations and Fit

- Garments are made to the measurements taken and confirmed by the Client (or the Client's authorised representative) at the measurement appointment(s). The Boutique is not liable for fit issues arising from measurement changes after this point (including but not limited to weight change, pregnancy, or measurements taken elsewhere and provided to the Boutique).
- One round of minor fitting alterations (as defined on the order form) is included in the quoted price where a fitting appointment has been attended by the Client prior to the final delivery date.
- Alterations requested after the garment has been collected, or within 72 hours of the wedding/event date, will be accommodated on a best-efforts basis only and may incur an additional fee; the Boutique cannot guarantee completion within that window.
- Where multiple garments are ordered for a single event (e.g. wedding day and reception), each garment is fitted and finalised independently, and satisfactory fit of one garment does not guarantee identical fit of another unless measurements were identical.

6. Photo and Portfolio Release

- Unless the Client opts out in writing prior to or at the time of order confirmation, the Client grants the Boutique a non-exclusive, royalty-free licence to photograph the Client's garment(s) and to use those images — excluding any images that clearly and identifiably show the Client's face, unless separately consented to — for the Boutique's portfolio, website, and social media marketing.
- The Client may opt out of this licence at any time by notifying the Boutique in writing; this will apply to future use only and does not require removal of material already published, unless the Client specifically requests takedown, which the Boutique will action within a reasonable time.
- Progress and fitting photographs taken for internal production purposes (pattern reference, karigar communication, quality control) are retained regardless of marketing opt-out status, as they are necessary to deliver the service.

7. Intellectual Property in Designs

- All original designs, sketches, patterns, embroidery motifs, and beadwork layouts created by or for the Boutique in the course of fulfilling an order remain the intellectual property of Pooja's Couture, whether or not the design was created in consultation with the Client.
- Where a Client provides their own design, reference image, or family heirloom pattern for replication, the Client warrants they hold the necessary rights to that material and the Boutique's use of it for the Client's order does not infringe any third party's rights; the Client indemnifies the Boutique against any claim arising from a breach of this warranty.
- The Client receives the physical, completed garment(s) they have paid for, but does not acquire any right to reproduce, replicate, resell, or commission a third party to replicate the design, pattern, or embroidery layout created by the Boutique, in whole or in part, for commercial purposes.

- The Boutique will not knowingly replicate a design created specifically and exclusively for a Client for another client without the original Client's consent, where the design was expressly agreed in writing to be exclusive to that Client.

8. International Supply Chain and Logistics Disclaimer

Many fabrics, embroidery components, and partially or fully finished garments involved in the Boutique's work are sourced from, manufactured by, or shipped via artisans, workshops, and logistics providers based in India. The Client acknowledges and accepts the following:

- Customs clearance, international freight, and cross-border logistics are subject to delays outside the Boutique's control, including customs inspection, documentation holds, carrier disruption, and public holidays or regional events in the country of origin.
- Where such a delay materially affects the estimated delivery date under Clause 4, the Boutique will notify the Client and provide a revised estimate as soon as reasonably practicable.
- The Boutique selects and manages its supply chain and logistics vendors with reasonable care, and remains the sole party responsible to the Client for the finished garment and the associated consumer guarantees under the ACL; this clause does not shift liability for the Boutique's own performance onto a third party, and does not exclude any non-excludable right the Client holds under the ACL.
- Where feasible, the Boutique will hold buffer time in its production schedule for orders reliant on international sourcing, but cannot guarantee against extraordinary disruption (e.g. customs strikes, extreme weather, force majeure events).

9. Limitation of Liability

To the maximum extent permitted by law, and subject always to the Client's rights under the ACL which are not excluded by this Agreement:

- The Boutique's total liability arising out of or in connection with an order, however arising (including in contract, tort, or otherwise), is limited to the total amount paid by the Client for that order.
- The Boutique is not liable for indirect, consequential, or special loss, including but not limited to loss of enjoyment of an event, or costs associated with rebooking a venue, photographer, or other third-party event supplier as a result of a delay.
- Nothing in this clause limits liability for death or personal injury caused by negligence, for fraud, or for any liability that cannot lawfully be excluded or limited.

10. Complaints and Disputes

- The Client should raise any concern about their order directly with the Boutique in the first instance, in writing, so it can be addressed promptly.

- If a dispute cannot be resolved directly, the Client may contact NSW Fair Trading or the Australian Competition and Consumer Commission (ACCC) for guidance on their rights under the ACL.
- This clause does not require the Client to pursue informal resolution before exercising any statutory right.

11. Acceptance

By paying the deposit specified on the order invoice, or by signing below, the Client confirms they have read, understood, and agree to these Terms.

Client Name:	For Pooja's Couture:
Signature:	Signature:
Date:	Date: